

another, judge-made doctrine of legislative immunity that also is important for federal executive officials.

This immunity was adopted by the Court in Tenney v. Brandhove, where plaintiffs sought damages from state legislators under 42 U.S.C. § 1983. In concluding that immunity barred the action, the Court looked to the principle of legislative freedom that was grounded in our common law traditions and held that it would not assume Congress had intended to abrogate that freedom sub silentio when it enacted § 1983 (341 U.S. at 376). The immunity recognized by the Court is similar to that provided by the Speech or Debate Clause -- legislators are absolutely protected, regardless their motives, as long as they act in the sphere of legitimate legislative activity (id. at 376-77). Citing Kilbourn v. Thompson, 103 U.S. 168, the Court also intimated that the immunity could have derivative application in appropriate situations (341 U.S. at 378).^{9/}

While the Speech or Debate Clause has been limited to Members of Congress (and their aides and functionaries), this common law legislative immunity has not been limited to members of state legislative bodies. Instead, the Court has held that the immunity also protects other officials who are

^{9/} Although the Speech or Debate and common law legislative immunities similarly bar civil damages actions, there has been no indication that the latter would have the effect of the constitutional provision in barring certain criminal proceedings.

"acting in a capacity comparable to that of members of a state legislature" (Lake Country Estates, Inc. v. Tahoe Regional Planning Agency, 440 U.S. 391, 406 (1979)). In Lake Country Estates, the immunity was extended to a regional planning agency created by interstate Compact where the members were "acting in a legislative capacity" even though the agency was not attached to a legislative branch of government (id. at 405 & n.30). This functional approach to immunity analysis similarly is reflected in Supreme Court of Virginia v. Consumers Union of the United States, Inc., 446 U.S. 719, 731 (1980), where the Court held that the Virginia Supreme Court's promulgation of disciplinary rules was not judicial but legislative in nature and, therefore, was cloaked with legislative immunity.

See UNITED STATES 12, 50; STATES 28(2);
CIVIL RIGHTS 13.8(2,3).

II. EXECUTIVE IMMUNITY DOCTRINE

Executive immunity differs markedly in origin from its judicial and legislative counterparts. These doctrines already were grounded firmly in the common law (and, in the case of the latter, the Constitution) when the Supreme Court first considered them; and the development of judicial and legislative immunity has been guided by these historical roots. Executive immunity has lacked clear common law parallels to shape its development, however. As a consequence,

the immunity that protects executive officials (other than the President)^{10/} is a judge-made doctrine that has evolved on an ad hoc basis.

This has resulted in a dichotomy that does not exist with judicial and legislative immunity. Executive officials sued in tort for breaching duties imposed by the common law generally are protected by absolute immunity. The same officials sued for violating duties created by the Constitution, however, generally only are protected by a qualified immunity. To complicate the matter further, there is a significant exception to the latter rule whereby certain functions still are accorded absolute immunity. Finally, no general rule governs the immunity that protects executive officials sued on statutory theories.

The present state of the executive immunity doctrine has practical consequences for the attorney handling a personal liability case. Because the nature of the lawsuit determines the scope of protection a defendant official receives and the immunity analysis the court must undertake, immunity briefs should avoid generally characterizing all damages actions as "Bivens" suits.^{11/} Instead, briefs

^{10/} A fundamentally different immunity doctrine protects the President, and accordingly Presidential immunity is treated separately in Part II(D), infra.

^{11/} Bivens v. Six Unknown Named Agents of Fed. Bur. of Narcotics, 403 U.S. 388 (1971).

should specify whether the plaintiff is seeking recovery under a constitutional tort (Bivens), common law, or statutory theory. Additionally, because this is a rapidly evolving area of the law, absolute immunity arguments which have not yet received general acceptance in the courts should be approved by the Torts Branch before they are made.^{12/}

A. Common Law Claims:

GENERAL RULE: Executive officials sued for common law torts receive absolute immunity for performing non-ministerial (i.e., discretionary) duties which are not manifestly or palpably beyond their authority. This rule has been modified in some circuits which only extend absolute immunity to acts that involve a particular type (governmental) or quantum (policy making) of discretion. Absolute immunity also protects executive officials when they perform mandatory duties. Absolute immunity generally has not been extended to the negligent performance of purely ministerial acts which are unconnected with a discretionary function, however.

^{12/} In some cases, what constitutes a federal official for immunity purposes will not be clear. Some courts have held that private persons employed by entities contractually related to the United States may receive official immunity's protection. See, e.g., Bushman v. Seiler, 755 F.2d 653, 655-56 (8th Cir. 1985), and cases there cited (immunity from defamation action extended to consultant for Medicare carrier); Becker v. Philco Corp., 372 F.2d 771, 773-75 (4th Cir.), cert. denied, 389 U.S. 979 (1967) (immunity from defamation action extended to defense contractor for transmitting adverse security report to Defense Department pursuant to contractual security requirements).

The extension of immunity to private actors, though perhaps beneficial in individual cases, is not without cost. The same rationale that is used to extend immunity beyond traditional governmental actions may be used (Cont.)

1. The Spalding-Barr Absolute Immunity Doctrine: The modern doctrine of executive immunity was born with the Supreme Court's decision in Spalding v. Vilas, 161 U.S. 483 (1896). The suit was brought by an attorney who represented numerous postmasters in securing salary readjustments under a recent enactment of Congress. The attorney contended that he had been libeled, to the detriment of his contractual agreements, when the Postmaster General advised the claimants in a letter that an attorney's services were not needed to secure relief. The attorney alleged that the Postmaster General had acted maliciously and sought damages from him.

The Court held that the Postmaster General was immune. In the absence of any direct support at common law for such an immunity, the Court looked to the general policies underlying its seminal judicial immunity decision in Bradley v. Fisher, 80 U.S. (13 Wall.) 335, as well as to English decisions where military officers had been found immune from libel suits by subordinates (see 161 U.S. at 496-98). By analogy, the Court concluded that withholding immunity

12/ (Cont.) to justify the creation of constitutional tort liability for nongovernmental actors. See Reuber v. United States, 750 F.2d 1039, 1053-62 (D.C. Cir. 1984) (private employee working at privately operated government facility may have constitutional tort remedy against corporate employer and its officers for corporation's personnel action that allegedly infringed on First Amendment interests); see also id. at 1063-65 (op. of Bork, J., concurring in judgment). In view of the uncertainty in this area, any argument that a nonfederal employee (or entity) is entitled to immunity should be approved by Torts Branch.

"would seriously cripple the proper and effective administration of public affairs as entrusted to the executive branch of government" (id. at 498). Consequently, the Court ruled that a Department head "cannot be held liable to a civil suit for damages on account of official communications made by him pursuant to an act of Congress, and in respect of matters within his authority" and, further, that the official's motives were "wholly immaterial" to this immunity (id. at 498-99).^{13/}

Spalding left unanswered the question whether executive immunity would protect officials who did not have Cabinet rank. This was answered affirmatively in Barr v. Matteo, 360 U.S. 564.^{14/} That case sought damages from the Acting Director of the Office of Rent Stabilization for issuing a press release that allegedly libeled the plaintiff. Adopting a pragmatic approach, the Court recognized that "[t]he complexities and magnitude of governmental activity have become so great that there must of necessity be a delegation and redelegation of authority as to many functions" and refused to accept "that these functions become less important simply because they are exercised by

^{13/} A similar immunity for civilian officials was recognized in England by the decision in Chatterton v. Secretary of State of India, [1895] 2 Q.B. 189, discussed in Barr v. Matteo, 360 U.S. 564, 581 (1959) (Warren, C.J., dissenting).

^{14/} In a companion decision, the Court held that federal law governs the immunity that protects federal officials (Howard v. Lyons, 360 U.S. 593, 597 (1959)).

officers of lower rank in the executive hierarchy" (id. at 573). Accordingly, the Court held that Spalding should not be limited to Department heads because "[t]he privilege is not a badge or emolument of exalted office, but an expression of a policy designed to aid in the effective functioning of government" (360 U.S. at 572-73).^{15/}

The Spalding-Barr rule of absolute immunity for common law torts is firmly established. Although the Supreme Court more recently has been reluctant to cloak executive officials with absolute immunity for constitutional torts, the continued vitality of these decisions has not been questioned.^{16/} Indeed, while both cases only involved

^{15/} For a full explication of the policies that underly the absolute immunity doctrines, see Judge Learned Hand's discussion in Gregoire v. Biddle, 177 F.2d 579, 581 (2d Cir. 1949), cert. denied, 339 U.S. 949 (1950), quoted approvingly in Barr v. Matteo, 360 U.S. at 572-73.

^{16/} See Butz v. Economou, 438 U.S. 478, 495 & n.22 (1978); Harlow v. Fitzgerald, 457 U.S. 800, 807-08 (1982).

For decisions of the circuits recognizing the continued viability of the doctrine, see Expeditions Unlimited Acquatic Enterprises, Inc. v. Smithsonian Institution, 566 F.2d 289, 291-94 (D.C. Cir. 1977)(en banc), cert. denied, 438 U.S. 915 (1978); Krohn v. United States, 742 F.2d 24, 29 (1st Cir. 1984); Wyler v. United States, 725 F.2d 156, 159 (2d Cir. 1983); Davis v. Knud-Hansen Memorial Hosp., 635 F.2d 179, 186 (3d Cir. 1980); Wallen v. Domm, 700 F.2d 124, 125-26 (4th Cir. 1983); Evans v. Wright, 582 F.2d 20, 21 (5th Cir. 1978); Granger v. Merek, 583 F.2d 781, 782-84 (6th Cir. 1978); Oyler v. National Guard Ass'n of United States, 743 F.2d 545, 552-53 (7th Cir. 1984); Johnson v. Busby, 704 F.2d 419, 420 (8th Cir. 1983); Miller v. DeLaune, 602 F.2d 198, 199-200 (9th Cir. 1979); Strothman v. Gefreh, 739 F.2d 515, 520 (10th Cir. 1984); Johns v. Pettibone Corp., 755 F.2d 1484, 1485 (11th Cir. 1985).